

Surinder Kumar Sharma vs Mrs. Sangita Devi on 11 January, 1993

Equivalent citations: (1993)104PLR129

JUDGMENT

Amarjeet Chaudhary, J.

1. This appeal is directed against the Judgment of the Additional District Judge, Gurgaon dated 22-1-1991, who, on petition under Section 13 of the Hindu Marriage. Act had dissolved the marriage between the parties by a decree of divorce.
2. In this appeal, the appellant has prayed for setting aside the order of the trial Court and that the divorce be granted to him According to the appellant, the respondent-wife had made certain allegations by which his future prospects of re-marrying have completely blocked. The Counsel for the appellant contends that the trial Court had granted divorce to the respondent-wife on the grounds of cruelty and desertion which she failed to prove. The trial Court in circumstances of the case, should have granted divorce to the appellant to which a request was also, made by him before the Court.
3. I have perused the case file and the evidence on the records.
4. On consideration of the matter, I am of the view that there is hardly any justification to interfere with, the well reasoned order of the trial Court. This appeal is wholly misconceived. The intention of this appeal is to seek divorce which has already been granted by the Court below. No useful purpose would be served to re open the matter afresh. In this view of the matter the appeal is dismissed.